

## 23BBCV01884 23BBCV01884

County: los-angeles

Division: Civil Law and Motion

Department: X

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#18 - IRENE INTELLIGATOR, et al. vs IMPERIUM ENERGY INC, et al.

Defendants' request for judicial notice is GRANTED as to the existence and filing of the court records and the existence of the identified state contractor licenses. (Evid. Code, §§ 452(d), 453.)

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the Fourth and Fifth Causes of Action against Shayan and Bahman. The demurrer is OVERRULED as to the Sixth Cause of Action against Bahman.

Defendant is to answer the FAC within 15 days of notice of this ruling.

Fourth Cause of Action

As to Shayan, the

incorporated allegations identify statements he allegedly made concerning the favorable reviews and Imperium's competence. The pleading does not allege with comparable specificity that Shayan knew the reviews were fake when he made those statements, intentionally concealed that fact, or made the statements with the intent to induce Plaintiffs' reliance. The general allegation that Imperium acted through its officers does not supply the missing individualized facts.

As to Bahman, the

First Amended Complaint alleges that he "knew or should have known" the reviews were fake and failed to disclose that fact. That alternative allegation does not clearly allege actual knowledge and intent to defraud. Nor does the pleading identify a communication, affirmative concealment, or other conduct by Bahman supporting the fraud claim apart from his corporate and licensing positions.

Accordingly, the

demurrer to the Fourth Cause of Action is SUSTAINED as to Shayan and Bahman.

## Fifth Cause of Action

### The Fifth Cause of

Action similarly alleges that Imperium affirmed the favorable reviews, concealed their alleged falsity, and thereby induced Plaintiffs to contract. Although the claim incorporates the earlier allegations concerning Shayan, it does not specifically plead his knowledge of falsity and intent at the time of the alleged representation. Likewise, the allegations against Bahman do not identify any representation or intentional concealment personally undertaken by him.

### The generalized

allegations that the corporate fraud was committed “by and through” Shayan and Bahman do not distinguish their respective knowledge, representations, omissions, or participation. (FAC, ¶ 148.) Because fraud must be pleaded against each defendant specifically, the allegations are insufficient in their present form.

### Accordingly, the

demurrer to the Fifth Cause of Action is SUSTAINED as to Shayan and Bahman.

## Sixth Cause of Action

### Defendants correctly

observe that section 7068.1 does not require an officer personally to supervise every construction site or perform every listed supervisory activity. But the First Amended Complaint alleges a complete failure to exercise supervision or control, not merely Bahman's absence from the jobsite. Whether Bahman exercised another statutorily permissible form of supervision, whether any breach caused Plaintiffs' damages, and whether the evidence ultimately supports personal liability present factual questions that cannot be resolved on demurrer.

### The Court therefore

concludes that the Sixth Cause of Action sufficiently alleges an individual duty, breach, causation, and damage for pleading purposes. The demurrer to the Sixth Cause of Action is OVERRULED.

Court is to give notice.